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42 U. S. C. § 1983, are by now familiar. Section 1983 on its face admits of no defense of official immunity. It subjects to liability “[e]very person” who, acting under color of state law, commits the prohibited acts. In *Tenney v. Brandhove*, 341 U. S. 367, 376 (1951), however, we held that Congress did not intend § 1983 to abrogate immunities “well grounded in history and reason.” Certain immunities were so well established in 1871, when § 1983 was enacted, that “we presume that Congress would have specifically so provided had it wished to abolish” them. *Pierson v. Ray*, 386 U. S. 547, 554–555 (1967). See also *Newport v. Fact Concerts, Inc.*, 453 U. S. 247, 258 (1981). Although we have found immunities in § 1983 that do not appear on the face of the statute, “[w]e do not have a license to establish immunities from § 1983 actions in the interests of what we judge to be sound public policy.” *Tower v. Glover*, 467 U. S. 914, 922–923 (1984). “[O]ur role is to interpret the intent of Congress in enacting § 1983, not to make a freewheeling policy choice.” *Malley v. Briggs*, 475 U. S. 335, 342 (1986).

Since *Tenney*, we have recognized two kinds of immunities under § 1983. Most public officials are entitled only to qualified immunity. *Harlow v. Fitzgerald*, 457 U. S. 800, 807 (1982); *Butz v. Economou*, 438 U. S. 478, 508 (1978). Under this form of immunity, government officials are not subject to damages liability for the performance of their discretionary functions when “their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known.” *Harlow v. Fitzgerald*, 457 U. S., at 818. In most cases, qualified immunity is sufficient to “protect officials who are required to exercise their discretion and the related public interest in encouraging the vigorous exercise of official authority.” *Butz v. Economou*, 438 U. S., at 506.

We have recognized, however, that some officials perform “special functions” which, because of their similarity to func-

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tions that would have been immune when Congress enacted §1983, deserve absolute protection from damages liability. *Id.*, at 508. “[T]he official seeking absolute immunity bears the burden of showing that such immunity is justified for the function in question.” *Burns v. Reed*, 500 U. S., at 486; *Antoine v. Byers & Anderson, Inc.*, 508 U. S. 429, 432, and n. 4 (1993). Even when we can identify a common-law tradition of absolute immunity for a given function, we have considered “whether §1983’s history or purposes nonetheless counsel against recognizing the same immunity in §1983 actions.” *Tower v. Glover*, 467 U. S., at 920. Not surprisingly, we have been “quite sparing” in recognizing absolute immunity for state actors in this context. *Forrester v. White*, 484 U. S. 219, 224 (1988).

In determining whether particular actions of government officials fit within a common-law tradition of absolute immunity, or only the more general standard of qualified immunity, we have applied a “functional approach,” see, e. g., *Burns*, 500 U. S., at 486, which looks to “the nature of the function performed, not the identity of the actor who performed it,” *Forrester v. White*, 484 U. S., at 229. We have twice applied this approach in determining whether the functions of contemporary prosecutors are entitled to absolute immunity.

In *Imbler v. Pachtman*, 424 U. S. 409 (1976), we held that a state prosecutor had absolute immunity for the initiation and pursuit of a criminal prosecution, including presentation of the State’s case at trial. Noting that our earlier cases had been “predicated upon a considered inquiry into the immunity historically accorded the relevant official at common law and the interests behind it,” *id.*, at 421, we focused on the functions of the prosecutor that had most often invited common-law tort actions. We concluded that the common-law rule of immunity for prosecutors was “well settled” and that “the same considerations of public policy that underlie the common-law rule likewise countenance absolute immu-

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nity under § 1983.” *Id.*, at 424. Those considerations⁴ supported a rule of absolute immunity for conduct of prosecutors that was “intimately associated with the judicial phase of the criminal process.” *Id.*, at 430. In concluding that “in initiating a prosecution and in presenting the State’s case, the prosecutor is immune from a civil suit for damages under § 1983,” we did not attempt to describe the line between a prosecutor’s acts in preparing for those functions, some of which would be absolutely immune, and his acts of investigation or “administration,” which would not. *Id.*, at 431, and n. 33.

We applied the *Imbler* analysis two Terms ago in *Burns v. Reed*, 500 U. S. 478 (1991). There the § 1983 suit challenged two acts by a prosecutor: (1) giving legal advice to the police on the propriety of hypnotizing a suspect and on whether probable cause existed to arrest that suspect, and (2) participating in a probable-cause hearing. We held that only the latter was entitled to absolute immunity. Immunity for that action under § 1983 accorded with the common-law absolute immunity of prosecutors and other attorneys for eliciting false or defamatory testimony from witnesses or for making false or defamatory statements during, and related to, judicial proceedings. *Id.*, at 489–490; *id.*, at 501 (SCALIA, J., concurring in judgment in part and dissenting in

⁴In particular, we expressed concern that fear of potential liability would undermine a prosecutor’s performance of his duties by forcing him to consider his own potential liability when making prosecutorial decisions and by diverting his “energy and attention . . . from the pressing duty of enforcing the criminal law.” *Imbler v. Pachtman*, 424 U. S., at 424–425. Suits against prosecutors would devolve into “a virtual retrial of the criminal offense of a new forum,” *id.*, at 425, and would undermine the vigorous enforcement of the law by providing a prosecutor an incentive not “to go forward with a close case where an acquittal likely would trigger a suit against him for damages,” *id.*, at 426, and n. 24. We also expressed concern that the availability of a damages action might cause judges to be reluctant to award relief to convicted defendants in post-trial motions. *Id.*, at 427.